LOAN AGREEMENT

Mesa Osprey Collegiate Commons | Charlotte, NC

Borrower	Mesa Osprey Collegiate Commons Owner LLC
Lender	Northfield Commercial Bank
Collateral	Mesa Osprey Collegiate Commons
Loan Amount	$23,750,000
Rate	4.15% Fixed
Closing Date	February 18, 2018

1. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $23,750,000. The loan shall bear interest at a fixed rate of 4.15% per annum, calculated on an Actual/360 basis. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

2. Maturity and Amortization. The loan matures 11 years from the Closing Date. Monthly payments shall be interest-only for the first 11 months and thereafter based on a 30-year amortization schedule. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

3. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

4. Collateral. The loan is secured by a first-lien mortgage on Mesa Osprey Collegiate Commons, an assignment of leases and rents and a security interest in all personal property. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

5. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

6. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

7. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. Time is of the essence with respect to each and every provision of this instrument.

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8. Cash Management. Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

9. Events of Default. Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

10. Recourse Carve-Outs. The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

11. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $23,750,000. The loan shall bear interest at a fixed rate of 4.15% per annum, calculated on an Actual/360 basis. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

12. Maturity and Amortization. The loan matures 12 years from the Closing Date. Monthly payments shall be interest-only for the first 8 months and thereafter based on a 30-year amortization schedule. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

13. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

14. Collateral. The loan is secured by a first-lien mortgage on Mesa Osprey Collegiate Commons, an assignment of leases and rents and a security interest in all personal property. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

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15. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

16. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

17. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

18. Cash Management. Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

19. Events of Default. Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

20. Recourse Carve-Outs. The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

21. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $23,750,000. The loan shall bear interest at a fixed rate of 4.15% per annum, calculated on an Actual/360 basis. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

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22. Maturity and Amortization. The loan matures 6 years from the Closing Date. Monthly payments shall be interest-only for the first 28 months and thereafter based on a 30-year amortization schedule. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

23. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

24. Collateral. The loan is secured by a first-lien mortgage on Mesa Osprey Collegiate Commons, an assignment of leases and rents and a security interest in all personal property. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

25. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

26. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

27. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

28. Cash Management. Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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29. Events of Default. Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

30. Recourse Carve-Outs. The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

31. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $23,750,000. The loan shall bear interest at a fixed rate of 4.15% per annum, calculated on an Actual/360 basis. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

32. Maturity and Amortization. The loan matures 8 years from the Closing Date. Monthly payments shall be interest-only for the first 12 months and thereafter based on a 30-year amortization schedule. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

33. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

34. Collateral. The loan is secured by a first-lien mortgage on Mesa Osprey Collegiate Commons, an assignment of leases and rents and a security interest in all personal property. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

35. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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36. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

37. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

38. Cash Management. Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

39. Events of Default. Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

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41. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $23,750,000. The loan shall bear interest at a fixed rate of 4.15% per annum, calculated on an Actual/360 basis. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

42. Maturity and Amortization. The loan matures 9 years from the Closing Date. Monthly payments shall be interest-only for the first 17 months and thereafter based on a 30-year amortization schedule. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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43. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

44. Collateral. The loan is secured by a first-lien mortgage on Mesa Osprey Collegiate Commons, an assignment of leases and rents and a security interest in all personal property. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

45. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

46. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

47. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

48. Cash Management. Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. Time is of the essence with respect to each and every provision of this instrument.

49. Events of Default. Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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50. Recourse Carve-Outs. The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

51. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $23,750,000. The loan shall bear interest at a fixed rate of 4.15% per annum, calculated on an Actual/360 basis. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

52. Maturity and Amortization. The loan matures 10 years from the Closing Date. Monthly payments shall be interest-only for the first 39 months and thereafter based on a 30-year amortization schedule. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

53. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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56. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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57. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

58. Cash Management. Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

59. Events of Default. Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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61. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $23,750,000. The loan shall bear interest at a fixed rate of 4.15% per annum, calculated on an Actual/360 basis. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

62. Maturity and Amortization. The loan matures 10 years from the Closing Date. Monthly payments shall be interest-only for the first 4 months and thereafter based on a 30-year amortization schedule. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

63. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

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64. Collateral. The loan is secured by a first-lien mortgage on Mesa Osprey Collegiate Commons, an assignment of leases and rents and a security interest in all personal property. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

65. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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67. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

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72. Maturity and Amortization. The loan matures 12 years from the Closing Date. Monthly payments shall be interest-only for the first 45 months and thereafter based on a 30-year amortization schedule. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

73. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

74. Collateral. The loan is secured by a first-lien mortgage on Mesa Osprey Collegiate Commons, an assignment of leases and rents and a security interest in all personal property. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

75. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

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80. Recourse Carve-Outs. The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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82. Maturity and Amortization. The loan matures 10 years from the Closing Date. Monthly payments shall be interest-only for the first 3 months and thereafter based on a 30-year amortization schedule. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

83. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

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86. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

87. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

88. Cash Management. Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

89. Events of Default. Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

90. Recourse Carve-Outs. The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

91. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $23,750,000. The loan shall bear interest at a fixed rate of 4.15% per annum, calculated on an Actual/360 basis. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Mesa Osprey Collegiate Commons Owner LLC

By: Chloe Ramirez Title: Authorized Signatory Date: 02/18/2018

_____

Daniel Alvarez

By: Linda Jackson Title: President Date: 02/18/2018

Exhibit A - Property

Mesa Osprey Collegiate Commons, 6081 Sunset Street, Charlotte, NC 88527. Parcel containing approximately 27.79 acres, together with all improvements thereon.

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